

BC643861 BC643861

County: los-angeles

Division: Civil Law and Motion

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Case Number: BC643861 Hearing Date: August 31, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

A C A LLC,

vs.

MYRON JEPPSON HOLMSTROM.

Case No.:

BC643861

Hearing Date: August 31, 2026

Cross-Defendant/Plaintiff

A.C.A. LLC's and Cross-Defendant Damian Akhavi's motion to strike in entirety the Memorandum of Costs filed on March 19, 2026, by Defendants/Cross-Complainants Paola Caldera, Mian Guo, Jia Shen, Yunying Li, Min Zhou, Yavuz Ertas, Nima Razfar, Ali Razfar, Jessica Caldera, Nadia Saban, Lebib Saban, Paul Luigi, Ganchimeg Oyunchimeg, Daniel Sacilotto, and Arnaud Larousse is granted in part

and denied in part.

Defendants and Cross-complainants DOE 101-Paola Caldera's;
DOE 102-Mian Guo's erroneously sued as Mian Gvo; DOE 103-Jia Shen's; DOE
104-Yunying Li's erroneously sued as Yun Ying Li; DOE 105-Min Zhou's; DOE
112-Yavuz Ertas'; DOE 113-Nima Razfar's; DOE 114-Ali Razfar's; DOE 115-Jessica
Caldera's; DOE 116-Nadia Saban; DOE 117-Lebiba Saban's erroneously sued as Lily
Saban; DOE 118-Paul Luigi; DOE 119- Ganchimeg Oyunchimeg's erroneously sued as
JanChungOzu; DOE 120-Daniel Sacilotto; and DOE 121-Arnaud Larousse's
erroneously sued as Arnald LaRousse motion to strike Cross-Defendant/Plaintiff
A.C.A. LLC's and Cross-Defendant Damian Akhavi's Memorandum of Costs filed on
March 17, 2026, by Cross-Defendant/Plaintiff A.C.A. LLC and Cross-Defendant
Damian Akhavi is granted in part and denied in part.

Defendants and Cross-complainants DOE 101-Paola Caldera's;
DOE 102-Mian Guo's erroneously sued as Mian Gvo; DOE 103-Jia Shen's; DOE
104-Yunying Li's erroneously sued as Yun Ying Li; DOE 105-Min Zhou's; DOE
112-Yavuz Ertas'; DOE 113-Nima Razfar's; DOE 114-Ali Razfar's; DOE 115-Jessica
Caldera's; DOE 116-Nadia Saban; DOE 117-Lebiba Saban's erroneously sued as Lily
Saban; DOE 118-Paul Luigi; DOE 119- Ganchimeg Oyunchimeg's erroneously sued as
JanChungOzu; DOE 120-Daniel Sacilotto; and DOE 121-Arnaud Larousse's
erroneously sued as Arnald LaRousse motion in the alternative to tax
Cross-Defendant/Plaintiff A.C.A. LLC's and Cross-Defendant Damian Akhavi's
Memorandum of Costs filed on March 17, 2026, by Cross-Defendant/Plaintiff
A.C.A. LLC and Cross-Defendant Damian Akhavi is granted in part and denied in
part.

Cross-Defendant/Plaintiff

A.C.A. LLC ("ACA") and Cross-Defendant Damian Akhavi ("Akhavi") (collectively,
"ACA Parties") move to strike the entire Memorandum of Costs filed on March 19,
2026, by Defendants/Cross-Complainants DOE 101-Paola Caldera; DOE 102-Mian Guo erroneously
sued as Mian Gvo; DOE 103-Jia Shen; DOE 104-Yunying Li erroneously sued as Yun
Ying Li; DOE 105-Min Zhou; DOE 112-Yavuz Ertas; DOE 113-Nima Razfar; DOE 114-Ali
Razfar; DOE 115-Jessica Caldera; DOE 116-Nadia Saban, DOE 117-Lebiba Saban erroneously
sued as Lily Saban; DOE 118-Paul Luigi; DOE 119- Ganchimeg Oyunchimeg
erroneously sued as JanChungOzu; DOE 120-Daniel Sacilotto; and DOE 121-Arnaud
Larousse erroneously sued as Arnald LaRousse (collectively "Tenant Defendants"). (ACA Notice Motion, pg. 1; CRC, Rule
3.1700(b)(1).) In the alternative, ACA Parties move to tax specific
portions of the Memorandum of Costs filed on March 19, 2026. (ACA Notice Motion, pgs. 1-12.)

Tenant

Defendants move to strike the entire Memorandum of Costs filed by the ACA

Parties on March 17, 2026. (Tenant Notice

Motion, pg. 2; CRC, Rules 3.1700, 3.1702; C.C.P. §§1032, 1033.5.) In the alternative, Tenant Defendants move to tax specific portions of the Memorandum of Costs filed on March 17, 2026. (Tenant Notice Motion, pg. 2.)

Background

Plaintiff

A.C.A. LLC ("ACA") filed a complaint against Defendant Myron Holmstrom

("Holmstrom") and DOES 1-200, on December 15, 2016, alleging causes of action

for (1) declaratory relief, (2) rescission and restitution, (3) ejectment, (4)

trespass, (5) breach of fiduciary duty, (6) false promise, (7) concealment, (8)

intentional misrepresentation, (9) intentional interference with contractual

relations, (10) breach of contract, (11) professional negligence, and (12)

Business and Profession Code §17200, in which the 4th, 5th, 6th, 7th, 8th, and

12th causes of action were asserted against all Defendants, the 1st, 2nd, and

3rd causes of action were asserted against all Defendants except DOES 1-100,

the 10th cause of action was asserted only against Holmstrom, and the 9th cause

of action was asserted against all Defendants except Holmstrom. A.C.A. LLC thereafter filed numerous DOE

Amendments to the complaint, as well as requests for dismissals of certain

causes of action against Holmstrom and certain DOE Defendants.

On

April 19, 2018, DOE 101 Paola Caldera, DOE 102 Mian Guo erroneously sued

as Mian Gvo, DOE 103 Jia Shen, DOE 104 Yunying Li erroneously sued as

Yun Ying Li, and DOE 105 Min Zhou (collectively "DOES 101-105") filed a

cross-complaint against Cross-Defendants. On April 20, 2018, DOES 101-105

filed a first amended cross-complaint ("FACC").

On August 9, 2018, DOE 115 Jessica Caldera,

DOE 112 Yavuz Ertas, DOE 121 Arnaud Larousse erroneously sued as Arnald

LaRousse, DOE 118 Paul Luigi, DOE 117 Lebiba Saban erroneously sued as Lily Saban, DOE 116 Nadia Saban, DOE 114

Ali Razfar, and DOE 113 Nima Razfar (collectively, "DOES 112-118, 121") filed a

complaint against Cross-Defendants in a separate action, Case No. BC717036,

alleging the same four causes of action as in the FACC. On February 11,

2020, the Court ordered the instant action, BC64386, and BC717036

consolidated.

On

March 27, 2020, DOES 101-105 filed a second amended cross-complaint ("SACC") alleging the same four causes of action against Cross-Defendants. On September 14, 2020, the Court granted DOE 119 Ganchimeg Oyunchimeg's (erroneously sued as JanChungOzu) ex parte application for leave to file a third amended cross-complaint ("TACC") to include DOE Defendant names inadvertently omitted from the SACC. The TACC was thereafter filed on September 15, 2020.

On September 11, 2020, the Court granted DOES 101-105's motion for summary adjudication as to the original complaint's 1st, 3rd, 4th, 9th, 11th, and 12th causes of action, while the 2nd and 5th causes of action remained in the operative pleading. On December 10, 2020, the Court granted A.C.A. LLC's motion for leave to file an amended verified complaint in part. Specifically, the Court granted A.C.A. LLC leave to amend the 1st (declaratory relief), 4th (trespass), 5th (breach of fiduciary duty), 6th (false promise), 11th (professional negligence), and 12th (Section 17200) causes of action and denied leave to amend as to the 2nd (rescission and restitution), 3rd (ejectment), 7th (concealment), 8th (intentional misrepresentation), 9th (intentional interference with contractual relations), and 10th (breach of contract) causes of action (as numbered in A.C.A. LLC's original complaint).

On January 7, 2021, ACA filed a first amended complaint ("FAC") alleging the following causes of action: (1) declaratory relief [as to all Tenant Defendants except DOES 1-100]; (2) ejectment [as to all Tenant Defendants except DOES 101-105], (3) trespass [as to all Tenant Defendants except DOES 101-105], (4) aiding and abetting breach of fiduciary duty [as to all Tenant Defendants], (5) intentional interference with contractual relations [as to all Tenant Defendants except DOES 101-105], (6) declaratory relief (in the alternative) [as to all Tenant Defendants], (7) breach of contract (in the alternative) [as to all Tenant Defendants], and (8) declaratory relief (in the alternative) [as to all Tenant Defendants].

On May 13, 2021, the Court overruled Tenant Defendants' demurrer to the FAC's 1st and 6th causes of action and sustained the demurrer as to the 7th cause of action (with leave to amend) and 8th cause of action (without leave to amend).

On

June 2, 2021, ACA filed its second amended complaint ("SAC") alleging the following causes of action: (1) declaratory relief [as to all Defendants except DOES 1-100]; (2) ejectment [as to all Defendants except P. Caldera, Guo, Shen, Li, and Zhou (collectively, "DOES 101-105")], (3) trespass [as to all Defendants except DOES 101-105], (4) aiding and abetting breach of fiduciary duty [as to all Defendants], (5) intentional interference with contractual relations [as to all Defendants except DOES 101-105], (6) declaratory relief (in the alternative) [as to all Defendants], and (7) breach of contract (in the alternative) [as to all Defendants].

On October 24, 2022, the Court granted Tenant Defendants' motion for summary adjudication as to the 1st, 2nd, 3rd, 4th, and 5th causes of action, and denied summary adjudication as to the 6th and 7th causes of action.

On February 15, 2023, the Court denied Tenant Defendants' motion for judgment on the pleadings as to ACA's 6th and 7th causes of action.

ACA

dismissed the 6th cause of action against Yavuz Ertas, Ali Razfar, Mian Guo and Jia Shen, and Yunying Li and Ganchimeg Oyunchimeg on 6/20/23, 7/3/23, 7/7/23, and 8/7/23, respectively.

On

August 7, 2023, this Court held a trial on the 6th cause of action for declaratory relief. Following a bench trial, the Court adjudicated ACA's 6th cause of action for Declaratory Relief in its SAC, as expressed in the Court's December 1, 2023, Statement of Decision.

On

December 1, 2023, this Court ruled on Tenant Defendants' motion for judgment on the pleadings of ACA's 7th cause of action, granting the motion as to Mian Guo, Jia Shen, Yunying Li, Yavuz Ertas, Ali Razfar, and Ganchimeg Oyunchimeg, and denying the motion as to the remaining Tenant Defendants. The Court denied ACA's request for leave to amend the SAC.

On June 5, 2024, Cross-complainants filed a Fourth Amended Cross-complaint ("4ACC").

On April 10, 2025, this Court granted the parties' stipulation granting Cross-complainants leave to file a fifth amended cross-complaint ("5ACC"), alleging four causes of action: (1) intentional influence to vacate; (2) retaliatory eviction; (3) violation of LAMC §§151.04(a), 151.05(c), and 151.06; and (4) violation of LAMC §45.33 (Tenant Harassment Ordinance) and a second amended complaint ("SAC") in the consolidated Case No. BC717036.

On October 10, 2024, ACA filed a Third Amended Complaint ("3AC") alleging three causes of action against all Tenant Defendants: (6) declaratory relief; (7) breach of contract; and (8) unjust enrichment.

On February 3, 2025, the Court sustained Tenant Defendants Paola Caldera's, Mian Guo's, Jia Shen's, Yunying Li's, Min Zhou's, Yavuz Ertas', Nima Razfar's, Ali Razfar's, Jessica Caldera's, Nadia Saban's, Lebiba Saban's, Paul Luigi's, Ganchimeg Oyunchimeg's, Daniel Sacilotto's, and Arnaud Larousse's demurrer to ACA's 3AC, without leave to amend as to the 6th cause of action and overruled the demurrer as to the 7th and 8th causes of action.

On June 24, 2025, this Court denied Cross-Defendants ACA Parties' motion for summary adjudication of the 2nd, 3rd, and 4th causes of action alleged in Cross-complainants Paola Caldera's, Mian Guo's, Jia Shen's, Yunying Li's, Min Zhou's, Daniel Sacilotto's, and Ganchimeg Oyunchimeg's 5ACC. This Court also denied Cross-Defendants ACA Parties' motion for summary adjudication of the 2nd, 3rd, and 4th causes of action alleged in Cross-complainants Jessica Caldera's, Yavuz Ertas', Arnaud Larousse's, Paul Luigi's, Lebiba Saban's, Nadia Saban's, Ali Razfar's, and Nima Razfar's SAC filed in the consolidated case, BC717036.

On August 4, 2025, in Department 71 of the above-captioned Superior Court, the Court, the Honorable Daniel M. Crowley presiding, conducted a jury trial of ACA's 3AC and Tenant Defendants' 5ACC (and their related SAC). ACA Parties appeared by their attorney, Michelle J. Correll. Tenant Defendants appeared by their attorneys, Dennis P. Riley and Mike N. Vo. A jury of twelve persons was regularly impaneled and sworn. Witnesses were sworn and testified.

At issue in the trial were the 7th and 8th causes of action in ACA's 3AC and Tenant Defendants' 5ACC (and their related SAC).

At the close of Tenant Defendants' case, the Court granted ACA Parties' motion for directed verdict as to the 3rd cause of action in the 5ACC (and SAC in consolidated case No. BC717036) for Violation of Los Angeles Municipal Code §§151.04(A), 151.05(C), and 151.06.

After hearing the evidence and arguments of counsel, the jury was duly instructed by the Court, and the cause was submitted to the jury. The jury deliberated and thereafter returned into court on September 2, 2025, with its verdict.

On May 7, 2026, ACA Parties filed their motion to tax costs. On August 18, 2026, Tenant Defendants filed their opposition. On August 24, 2026, ACA Parties filed their reply.

On May 4, 2026, Tenant Defendants filed their motion to tax costs. On July 7, 2026, ACA Parties filed their opposition. On July 13, 2026, Tenant Defendants filed their reply.

On March 25, 2026, Tenant Defendants and ACA Parties filed a Stipulation/Agreement Extending the Time to File Motions to Strike and/or Tax Costs, agreeing to extend the time for ACA Parties to file the present motion to May 7, 2026, and for Tenant Defendants to file the present motion to May 4, 2026, pursuant to CRC, Rule 3.1700(b)(3). Both parties' motions were timely filed.

Legal Standard

Pursuant to C.C.P. §1032(a)(4), a "prevailing party" includes

the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in

situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(C.C.P. §1032(a)(4), emphasis added.)

CRC,
Rule 3.1700(a)(1) provides:

A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.

(CRC, Rule 3.1700(a)(1).)

“If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

“[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. [Citation] However, ‘[i]f the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].’ [Citations.]” (Id.)

“The court’s first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable. [Citation.]” (Id.)

Under C.C.P. §1032, a “prevailing party” is one with a net monetary recovery. (See C.C.P. §1032(a)(4).) A prevailing party is entitled as a matter of right to recover costs in any action or proceeding, except as otherwise expressly provided by statute. (C.C.P. §1032(b).) California law recognizes three types of litigation costs: allowable, not allowable, and discretionary. (C.C.P. §§1033.5(a), (b), (c)(4).) Items not specifically allowable as costs under C.C.P. §1033.5(a), and not specifically prohibited under §1033.5(b), may be allowed as costs at the discretion of the trial court if reasonably necessary to the conduct of the litigation. (Citizens for Responsible Development v. City of West Hollywood (1995) 39 Cal.App.4th 490, 506, citing Ladas v. California State Auto Association (1993) 19 Cal.App.4th 761, 774.) For allowable costs, C.C.P. §1033.5(c) provides:

(2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

(3) Allowable costs shall be reasonable in amount.

(C.C.P. §§1033.5(c)(2)-(3).)

To the extent a party challenges costs, they must be challenged as costs that were not, “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” or not “reasonable in amount.” (C.C.P. §§1033.5(c)(2)-(3).)

C.C.P. §1033(a) provides as follows:

(a) Costs or any portion of claimed costs shall be as determined by the court in its discretion in a case other than a limited civil case in accordance with Section 1034 where the prevailing party recovers a judgment that could have been rendered in a limited civil case.

(C.C.P. §1033(a).) “[T]he purpose of Code of Civil Procedure section 1033 (formerly section 1032, subdivision (2)) is ‘to discourage plaintiffs from “over filing” their cases’ and thereby ‘wast[ing] judicial resources.’ Accordingly, the trial court may properly award costs to a plaintiff who recovers less than the jurisdictional amount for an unlimited civil case when he or she reasonably and in good faith initiated the action believing that the ultimate recovery would exceed the jurisdictional limit.” (Carter v. Cohen (2010) 188 Cal.App.4th 1038, 1053, emphasis added.)

C.C.P. §85 provides:

Notwithstanding any law, including, but not limited to, a law that classified an action or special proceeding as a limited civil case, an action or special proceeding shall be treated as a limited civil case only if all of the following conditions are satisfied:

(a) The amount in controversy does not exceed thirty-five thousand dollars (\$35,000). As used in this section, “amount in controversy” means the amount of the demand, or the recovery sought, or the value of the property, or the amount of the lien, that is in controversy in the action, exclusive of attorneys’ fees, interest, and costs.

(b) The relief sought is a type that may be granted in a limited civil case.

(c) The relief sought, whether in the complaint, a cross-complaint, or otherwise, is exclusively of a type described in one or more laws that classify an action or special proceeding as a limited civil case or that provide that an action or special proceeding is within the original jurisdiction of the superior court . . .

(C.C.P. §85, emphasis added.) At the time ACA Parties

commenced the action, the jurisdictional limit for limited civil cases was \$25,000. (Former C.C.P. §85.)

Tenant Defendants' Motion to Tax Costs

Evidentiary

Objections

Tenant Defendants'

7/13/26 evidentiary objections to the Declaration of Michelle J. Correll ("Correll") are overruled as to Nos. 1, 2, 3, 4, 5, 7, 8, 9, 10, 11, 13, 14, 15, 16, 18, 22, and 31 and sustained as to Nos. 6, 12, 17, 19, 20, 21, 23, 24, 25, 26, 27, 28, 29, and 30 as to arguments impermissibly asserted in declarations.

ACA

Parties' 7/14/26 evidentiary objection to Section I of the Tenants' Reply Memorandum (that LAMC § 45.35 is an exception to CCP § 1032) is sustained.

ACA

Parties' 7/14/26 evidentiary objection to the Declaration of Shiree Magee ("Magee") is sustained.

Discussion

Pursuant to C.C.P. §1032(a)(4),
a "prevailing party" includes

the party with a
net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(C.C.P. §1032(a)(4), emphasis

added.)

CRC,

Rule 3.1700(a)(1) provides:

A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.

(CRC, Rule 3.1700(a)(1).)

Tenant

Defendants move to strike ACA Parties' Memorandum of Costs filed on March 17, 2026, on the basis that ACA Parties are not the prevailing party based on five arguments: (1) ACA Parties did not prevail on the 5ACC as to the Tenant Defendants who prevailed on the Tenant Harassment claim; (2) because the 5ACC was filed in response to ACA's complaint in which ACA asserted only tort claims and declaratory relief claims, all of which ACA lost, ACA cannot be the prevailing party on the cross-complaint notwithstanding the Tenant Defendants did not prevail on some of the claims alleged therein; (3) 12 of the 15 Tenant Defendants obtained a net recovery against ACA Parties based on the monetary recovery in the 5ACC and all Tenant Defendants obtained a nonmonetary recovery by successfully defeating all ACA's claims alleged against them in the SAC and defeating 2 out of the three claims alleged by ACA in the TAC; (4) ACA did not prevail on any cause of action in the original complaint, FAC, and SAC and thus, is not entitled to recovery of any costs that pre-date the filing of the TAC on October 10, 2024, and ACA only prevailed on the breach of contract claim alleged in the TAC as to 7 of the 15 Defendants, and as to five of those seven Tenant Defendants (Jia Shen, Ali Razfar, Nima Razfar, Min Zhou and Daniel Sacilotto), ACA did not prevail on the cross-complaint as to them; and (5) the claim for breach of contract alleged in the TAC did not "relate back" to the FAC or SAC because the "breach" alleged in the TAC did not occur until May 23, 2023, or thereafter, long after those complaints were filed.

(Tenant Motion, pgs. 7-9.)

Tenant Defendants' arguments have merit to an extent. First, ACA made no recovery against Jessica Caldera, Yavuz Ertas, Arnald LaRousse, Paul Luigi, Ganchimeg Oyunchimeg, Lebiba Saban, and Nadia Saban. These tenants prevailed on the complaint and are entitled to costs.

Plaintiff ACA prevailed on the Complaint as to Shen (\$20,600.00), Guo (\$20,600.00), Li (\$46,400.00), Zhou (\$46,400.00), Nima Razfar (\$23,690.00), Ali Razfar (\$46,144.00), and Sacilotto (\$21,640.00). In view of their net monetary recovery, the Court has no discretion but to find that ACA was the prevailing party as to these Defendants. (See *Charton v. Harkey* (2016) 247 Cal.App.4th 730, 738 ["[T]he trial court has no discretion to deny prevailing party status to a litigant who falls within one of the four statutory categories in [C.C.P. §1032(a)(4)].".) ACA is entitled to costs these Defendants as a matter of right. (See C.C.P. §1032(b).)

Nonetheless, as to Mian Guo, Nima Razfar, Daniel Sacilotto, and Jia Shen, ACA's monetary recovery falls well below the civil unlimited jurisdictional minimum and barely qualifies as a limited civil proceeding[1]; Plaintiff ACA failed to take advantage of the efficiency of a limited civil proceeding. Therefore, the Court in its discretion denies Plaintiff ACA's request for costs on Complaint as to these Defendants pursuant to C.C.P. §1033(a).

Conclusion

Plaintiff, ACA, is entitled to costs against only Yunying Li, Ali Razfar, and Min Zhou.

ACA Parties' Motion to Tax Costs
on the Cross-complaint

Judgment
on the 5ACC and SAC was entered as follows:

(g) Judgment is entered in favor of Cross-Defendants ACA

LLC and DAMIAN AKHAVI against Cross-Complainant YAVUZ ERTAS, and Cross-Complainant YAVUZ ERTAS shall take nothing as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(h) Judgment is entered in favor of Cross-Complainant PAOLA CALDERA in the amount of \$1,500.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(i)
Judgment is entered in favor of Cross-Complainant JESSICA CALDERA in the amount of \$1.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(j)
Judgment is entered in favor of Cross-Complainant ARNAUD LAROUSSE in the amount of \$1,500.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(k) Judgment is entered in favor of Cross-Complainant PAUL LUIGI in the amount of \$1,500.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(l)
Judgment is entered in favor of Cross-Complainant GANCHIMEG OYUNCHIMEG in the amount of \$1,500.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(m)
Judgment is entered in favor of Cross-Complainant LEBIBA SABAN in the amount of \$1,500.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(n) Judgment is entered in favor of Cross-Complainant NADIA SABAN in the amount of \$1,500.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(o) Judgment is entered in favor of Cross-Complainant ALI RAZFAR in the amount of \$1.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(p) Judgment is entered in favor of Cross-Complainant NIMA RAZFAR in the amount of \$1.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(q) Judgment is entered in favor of Cross-Complainant DANIEL SACILOTTO in the amount of \$1.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(r)
Judgment is entered in favor of Cross-Complainant JIA SHEN in the amount of \$1.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

(s)
Judgment is entered in favor of Cross-Complainant MIN ZHOU in the amount of \$1.00 as against Cross-Defendants A.C.A. LLC and DAMIAN AKHAVI.

Except as provided herein, no party shall take any further by way of any complaints, cross-complaints, or amended versions thereof filed in case numbers BC643861 or BC717036.

(Amended Judgment, pgs. 6-7, emphasis added.)

Tenant Defendants' monetary recovery, combined, amounts to \$9,006.00, and for individual Tenant Defendants ranges from \$1,500.00 to \$1.00. Tenant Defendants' monetary recovery falls well below the civil unlimited jurisdictional minimum and barely qualifies as a limited civil proceeding; nevertheless, Tenant Defendants failed to take advantage of the efficiency of a limited civil proceeding.

Therefore, the Court in its discretion denies Tenant Cross-complaints' request for costs on the Cross-complaint pursuant to C.C.P. §1033(a).

Conclusion

The Court in its discretion denies Tenant Cross-complaints' request for costs on

the Cross-complaint pursuant to C.C.P. §1033(a).

Conclusion

on both motions:

On the Complaint, Yunying Li, Ali Razfar, and Min Zhou are prevailing parties entitled to costs.

On the Complaint, Defendants, Jessica Caldera, Yavuz Ertas, Arnald LaRousse, Paul Luigi, Ganchimeg Oyunchimeg, Lebiba Saban, and Nadia Saban, prevailed and are entitled to costs.

No Cross-complainant is entitled to costs on the Cross-complaint.

Counsel are to submit further briefing on how these rulings affect the amount of costs sought by these parties. Each side may submit a brief of no more than 10 pages addressing the issue by October 1, 2026, and then each side may respond to the other's brief with a brief of, again, no more than 10 pages by October 8, 2026. The Court will hear arguments on these issues along with the parties' requests for attorney's fees on October 16, 2026 at 8:30 a.m.

Plaintiff, ACA is to give notice of this ruling.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] Small claims cases recover claims for \$12,500 or less. Tenant Defendants' recovery qualifies as a small claims case.